

01572068-CU-OR-WJC and (2) *Brian Bendy v. David L. Simpson*, Case No. 2026-01562015-CL-UD-CJC.

The court designates *David L. Simpson v. Brian R. Bendy et al.*, Case No. 30-2026-01572068- CU-OR-WJC, as the lead case and all further documents must be filed under the case number and caption of the lead case.

All subsequent documents must be filed only in the lead case. All documents filed in the consolidated case must include the caption and case number of the lead case, followed by the case number of the other consolidated case. (Cal. Rules of Ct, rule 3.350(d).)

Bendy asks the court to condition consolidation on Plaintiff 1) making an initial payment of over \$43,000 to account for the amount Bendy paid toward the senior deed of trust and certain maintenance expenses, 2) paying \$5,512.20 in advance for each month Plaintiff remains in possession of the Property (calculated from \$183.74 per day), and 3) posting a separate undertaking of six months of the property's occupancy in the amount of \$33,073.20. (Opp'n Br. at pp. 12-13.)

The UD Court previously ordered Plaintiff to pay the reasonable rental value of the property for some time. (Bendy RJN, Exh. 7 ["The Court orders the Defendant to pay Mr. Bendy the reasonable rental value of the property, which is \$176.07 per day for the duration of the stay issued by this Court, which is August 28, 2026, totaling \$5,282.10 plus \$211.15 in HOA fees for a total amount of \$5,493.25. The court orders that Mr. Simpson is to make the payment of \$5,493.25 no later than 5 PM Friday, July 31, 2026, in certified funds to Mr. Bendy. The funds may be delivered to Mr. Bendy care of his counsel at the Ryan Firm, 2603 Main Street, Suite 1225, Irvine, CA 92614."]; see also RJN, Exh. 1 ["The Court orders the Defendant to pay the reasonable rental value plus the monthly HOA fee, which totals \$183.74 per day, for the period from April 11, 2026, to July 28, 2026 (\$183.74 x 109 days), for a total of \$20,027.66. In addition, because the stay continues to the next court date of September 22, 2026, the Court orders the reasonable rental value plus the HOA cost of \$183.74

		(\$183.74 x 25 days) to be paid to the Plaintiff in the amount of \$4,593.50. Between the two periods, the total payment is \$24,621.16.”].) Plaintiff is hereby ORDERED to pay the reasonable rental value of the property, which the UD Court found to be \$183.74 per day, from 9/23/26 through 10/31/26, for a total of \$6,982.12. Plaintiff shall make this payment in certified funds to Bendy no later than 9/25/26. Plaintiff is also ORDERED to make monthly payments thereafter of \$5,512.2 (30 x \$183.74) in certified funds to Bendy by the first day of each month, beginning on 11/1/26. Finally, Plaintiff is ORDERED to pay Bendy an additional \$2,460 in certified funds for the maintenance required to cure the association’s violation notices. (Bendy Decl., ¶ 16.) Plaintiff SHALL make this payment in certified funds to Bendy by 9/25/26. Plaintiff to give notice.
14	Kappes vs. Augustin	<u>Motion to Quash Service of Summons and Complaint</u> (Status Conference) 1. Motion to Quash The court DENIES Defendant DONNA AUGUSTINI’s (erroneously sued as Donna Augustin) motion to quash. RJN: Although unnecessary, Plaintiff’s request for judicial notice of various court filings in this consolidated action is GRANTED. (Evid. Code § 452(d).) As explained below, the opposing papers are generally well-taken. “A general appearance by a party is equivalent to personal service of summons on such party.” (Code Civ. Proc., § 410.50(a).)

“The statutory list of acts constituting an appearance (*id.*, § 1014 [filing an answer, demurrer, motion to strike, etc.]) is not exclusive; ‘rather the term may apply to various acts which, under all of the circumstances, are deemed to confer jurisdiction of the person. [Citation.] What is determinative is whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed.’” (*Hamilton v. Asbestos Corp., Ltd.* (2000) Cal.4th 1127, 1147 [citing *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1397].)

In *Hamilton*, the court held that a defendant in one action (labeled *Mitchell II*) had been deemed to make a general appearance in another action (labelled *Mitchell I*) after the two actions were consolidated for all purposes. The court considered the following factors in its decision:

Asbestos Corporation, moreover, fully participated in this consolidated action from beginning to end. First, as the trial court noted, Mitchell served his motion to consolidate on Asbestos Corporation, but Asbestos Corporation made no objection to it. At the start of trial Mitchell inquired if Asbestos Corporation objected to his proving the latter's liability for both his asbestosis and mesothelioma, and counsel for Asbestos Corporation replied, “I don't think I can object as to how you want to proceed. I can only prove that you didn't prove it.” Counsel for Asbestos Corporation subsequently signed and filed an affidavit (concerning a notice of deposition) bearing only the title and case number of *Mitchell I*, and later signed a stipulation (concerning trial exhibits) that also bore only the title and case number of *Mitchell I*. As noted above, Asbestos Corporation was the sole defendant at trial and actively defended itself on the merits of all the claims litigated by Mitchell—claims arising from both asbestosis and mesothelioma. Lastly, at no time throughout the proceedings did Asbestos Corporation object to the trial court's jurisdiction on the ground it had not been served in *Mitchell I*.

(*Hamilton*, 22 Cal.4th at 1149 [fn. omitted]; See also *Sunrise Financial, LLC v. Superior Court* (2019) 32 Cal.App.5th 114, 126, 136 [defendants “made a general appearance in the San Diego action ... when they filed their

opposition to the motion to transfer and consolidate their San Bernardino action with the San Diego action,” and it made no difference that they referred to themselves as “Specially Appearing Defendants.”].)

Here, on 11/27/24, Plaintiffs filed a motion to consolidate this action with the action *Donna Augustini v. Chris Kappes, et al.*, Case No. 30 2024-01430705-CU-FR-CJC (the "*Augustini Action*") for all purposes. Plaintiff Donna Augustini in the Augustini Action filed opposing papers to the motion in that action, Case No. 30- 2024-01430705. In that Opposition, she stated that she filed her opposition in the *Augustini Action* in order: (a) to avoid any claim that she has appeared or otherwise submitted to the court’s jurisdiction in the *Kappes Action*; and (b) to avoid having to pay a first appearance fee in the *Kappes Action* as a condition to opposing the motion. (See Augustini Decl., ¶ 11, Exh. H.) The act of filing the Opposition in the *Augustini Action* was improper, regardless of the reason. (See Cal. Rules of Ct., rule 3.350(a) [memorandums must be filed in lowest number case].)

The motion was denied without prejudice on 8/22/25 as being premature. Thereafter, on 3/2/26 at an OSC re sanctions for failure to serve and prosecute (both Mr. Verdun and Mr. Augustini were present), the court ordered the *Kappes Action* and the *Augustini Action* consolidated for all purposes. The court designated *Kappes vs. Augustin* 30-2024-01430382 as the lead case and ordered that further documents must be filed under the case number and caption of the lead case. (See 3/2/26 Order [ROA 58].)

On 6/2/26, the Plaintiffs submitted a proof of service of summons stating that Donna Augustini was served via her counsel of record, Mr. Augustini, and that Donna Augustin had appeared in the action. (ROA 63.)

Defendant Ms. Augustini now brings this motion to quash, arguing that electronic service to her counsel is improper service of the summons and complaint.

In response, Plaintiffs argue that Donna Augustini has generally appeared in this action, because she appeared in the *Augustini v. Kappes* action and those two actions have